

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

October 13, 2008

The Governing Body of the City of Cheyenne met in regular session on this date at 6:00 p.m. in Council Chambers. Present were: MAYOR-Jack R. Spiker; COUNCIL MEMBERS-Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Laybourn, Mr. Pierson, Dr. Rinne, Mr. Segrave and Mr. Valdez. Absent: Ms. Case. The pledge of allegiance was recited.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Erik Rasmussen, Deputy City Attorney.

Mayor Spiker recognized Carol Intlekofer, City Clerk, for recently attaining the professional designation of Master Municipal Clerk and presented her with a plaque from the International Institute of Municipal Clerks organization in recognition of the achievement.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests, in which event the item will be removed from the Consent Agenda and considered in its normal sequence on the agenda.) Mr. Collins moved to approve the Consent Agenda items, seconded by Mr. Segrave. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mr. Laybourn voting "no".

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON SEPTEMBER 22, 2008. Motion (per consent agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON OCTOBER 6, 2008. Motion (per consent agenda) carried.

Mr. Segrave moved to approve payment of vouchers as presented, seconded by Mr. Valdez. City Treasurer Barb Dorr requested the following two vouchers be removed for payment: Cheyenne Chamber of Commerce (\$351.00), membership dues for the City's Taco John's Events Center (membership is covered under the City's general membership dues), and Wyoming State Bar, (\$305.00) annual membership dues for former City Attorney Claudia Angelos (canceled payment due to Ms. Angelos' employment resignation). Mr. Segrave moved to amend to remove the two vouchers from the payable list as requested by Ms. Dorr, seconded by Mr. Pierson. Motion to amend carried. Voting "yes" – all members of the governing body present. Upon inquiry, Ms. Dorr provided information on a voucher payable to John and Wendy Volk (\$5,000.00), earnest money for proposed City acquisition of property for a downtown parking area (purchase contingent upon approval of the governing body and State Loan and Investment Board (SLIB) consensus grant funding approval). Mayor Spiker advised acquisition of the property would also be contingent upon administrative due diligence. Comments followed on the process utilized to negotiate and acquire property; City Council communication;

SLIB funding approval; proposed property use, and real estate transaction procedures. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn voting “no”.

“AN ORDINANCE VACATING THE ALLEY IN BLOCK ONE AND THE ALLEY IN BLOCK 2 OF OSTDIEK SUBDIVISION, CHEYENNE, WYOMING (LOCATED EAST OF WILLS ROAD, BETWEEN CHARLES AND CHEYENNE STREETS).” Larry Perry, Terrestrial Surveying and Mapping, agent for the property owner, provided information concerning the vacation request. Reporting for Public Services Committee, Mr. Collins moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body present. (#3829)

“AN ORDINANCE AMENDING SECTION 2.64.090, DEMOLITION PERMIT REVIEW, OF CHAPTER 2.64, HISTORIC PRESERVATION BOARD, OF TITLE 2, ADMINISTRATION AND PERSONNEL, OF THE CHEYENNE CITY CODE, PERTAINING TO APPLICATIONS FOR DEMOLITION AND MOVING PERMITS INVOLVING CERTAIN BUILDINGS AND STRUCTURES.” John Fafoutakis spoke in support of the ordinance. Mr. Collins moved to approve on second reading, seconded by Ms. Broyles. Comment followed on the application review process by the Historic Preservation Board, appeals involving the Board of Appeals, and potential expense to property owners. Upon inquiry, Erik Rasmussen, Deputy City Attorney, provided information on the appeals process when a decision rendered by District Court is involved. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Pierson and Mayor Spiker voting “no”.

“AN ORDINANCE DELETING AND RECREATING SECTION 2.04.142 (C), CONSENT AGENDA, OF TITLE 2, ADMINISTRATION AND PERSONNEL, OF CHAPTER 2.04, MAYOR AND CITY COUNCIL, OF THE CHEYENNE CITY CODE, PERTAINING TO THE MEETING AGENDA FORMAT FOR REGULAR MEETINGS OF THE GOVERNING BODY OF THE CITY OF CHEYENNE.” John Fafoutakis spoke in opposition to the ordinance and referenced equal rights protection contained in the U.S. Constitution. Reporting for Public Services Committee, Dr. Rinne moved to approve on second reading, seconded by Mr. Collins. Upon inquiry concerning equal protection afforded under the U.S. Constitution, Erik Rasmussen, Deputy City Attorney, advised the City Attorney’s office is contracting with an outside attorney to research the issue, and that further information would be provided at the next Committee meeting. Comments followed in opposition to procedures outlined in the proposed ordinance; potential legalities involving equal protection; discussion/debate limitation; Consent Agenda item removal and approval procedures; constituent(s) representation; other Wyoming municipalities and organizations that utilize a Consent Agenda process; efficiency of meetings, and public request to a governing body member(s) to withdraw a Consent Agenda item. Mr. Laybourn moved to postpone for two weeks (to Oct. 27, 2008) to allow time for legal analysis of issues raised, seconded by Mr. Valdez. Mr. Fafoutakis, Steve Freudenthal, Hu Wang, C. J. Brown, Beth Rulli, J. Fred Volk, Stephen Karajanis and Paula Qualls spoke in favor of postponement and in opposition to the ordinance as written. Topics presented included: U.S. Constitution and 1st amendment rights; alternate options that could be utilized to provide for efficient meetings while affording basic rights to all governing body members; democratic

process; citizen request to remove Consent Agenda items; transparency; concern with issues involving respect among Council members, and Robert's Rules of Order. Mayor Spiker reviewed the Consent Agenda process, stating the proposed ordinance allows the public an opportunity to remove an eligible Consent Agenda item for discussion by contacting a Council member and requesting the item be removed. Discussion followed in support and non-support of postponement of the ordinance on 2nd reading. During discussion, Mr. Collins raised a point of order that comments being made were not germane to the motion on the floor with Mayor Spiker ruling that comments should remain pertinent to the issue of postponement. Motion to postpone failed. Voting "yes" - Mr. Laybourn and Mr. Valdez. Voting "no" - Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Segrave and Mayor Spiker. Discussion on the main motion included the following topics: Streamlining of meetings to benefit the public and staff; purpose of a Consent Agenda; time length of governing body meetings; concerns and issues involving the current process utilized to remove Consent Agenda items; public participation; potential legalities; changes in procedure contained in the proposed ordinance, and accountability. Pursuant to comments that the intent of the proposed ordinance was to retain wording involving audience requests to Council members to withdraw Consent Agenda items and determination that the proposed ordinance did not include the wording, Mr. Brown requested City Clerk Carol Intlekofer read current City Code language pertaining to audience requests. Following reading of the City Code language, Mr. Brown suggested an amendment be considered. Following a 10 minute recess to review proposed language to be offered as an amendment and its placement within the body of the ordinance, Mayor Spiker reconvened the meeting at 7:59 p.m. Mayor Spiker announced that during the recess Mr. Freudenthal, local attorney and former state attorney general, had offered his services to review the ordinance and affiliated issue involving basic rights of governing body members, and propose alternate options for addressing meeting efficiency and Consent Agenda procedural concerns. He advised that Mr. Freudenthal had indicated he could submit a draft proposal at the next Public Services Committee meeting. Comment was made on procedural concerns. Mr. Brown moved to call for the question (to limit debate), seconded by Mr. Segrave. Motion carried. Voting "yes" - all members of the governing body present with the exception of Mr. Laybourn and Mr. Valdez voting "no". Main motion carried. Voting "yes" - all members of the governing body present with the exception of Mr. Laybourn, Dr. Rinne and Mr. Valdez voting "no".

"AN ORDINANCE AMENDING SECTION 6.12.020, RABIES TAGS, OF CHAPTER 6.12, DOG AND CAT REGISTRATION, AND SECTION 6.16.020, RABIES VACCINATION REQUIRED, OF CHAPTER 6.16, RABIES CONTROL, OF TITLE 6, ANIMALS, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING." Karon Volk spoke in support of the ordinance change, submitted a packet of information (on file with office of City Clerk) containing research on rabies vaccines and written statements in support of the ordinance, and discussed standard guidelines for rabies vaccines, over-vaccinations, medical exemption/waiver and duration effectiveness of vaccinations. Also speaking in support of the ordinance were: Judy Johnstone, John Fafoutakis, Beth Rulli, Emily Sieger, J. Fred Volk and Barb Patterson. Comments included the following topics: Ordinance change to provide for less frequent animal vaccinations and providing pet owners with choices; research information; over-vaccination concerns; potential animal reactions to vaccines; support for professional veterinary animal care services, and animal registration and vaccination requirements. Mr. Collins moved to approve on second reading, seconded by Mr. Pierson. Mr. Pierson moved to amend by substitute

ordinance, seconded by Mr. Collins. It was advised the substitute provides for registration tags if the vaccination is valid for a period longer than one year; animal owner's discretion on vaccination time frames, and a medical exemption section. Ms. Volk spoke in favor of the proposed substitute. Comment followed on animal registration requirements. Pursuant to inquiry concerning grammatical and clerical errors noticed in the proposed substitute, it was determined the errors could be corrected by the City Clerk without formal amendment. Motion to amend by substitute carried. Voting "yes" – all members of the governing body present. Following brief comments, main motion as amended by substitute carried. Voting "yes" – all members of the governing body present.

"AN ORDINANCE AMENDING SECTIONS 2.04.040, 2.04.160 AND 2.04.170 OF TITLE 2, ADMINISTRATION AND PERSONNEL, CHAPTER 2.04, MAYOR AND CITY COUNCIL, OF THE CHEYENNE CITY CODE TO PROVIDE FOR A CLERICAL CORRECTION, AND TO CLARIFY STATE LAW PROVISIONS CONCERNING READINGS OF ORDINANCES AND REQUIRED VOTE" -- referred to Public Services Committee.

[CA] "A RESOLUTION AUTHORIZING THE USE OF 2003-2006 1% OPTIONAL SALES TAX OVERAGE FUNDS IN THE AMOUNT OF \$147,280.00 FOR THE PURPOSE OF REIMBURSING APPROVED EXPENDITURES FROM THE 2007-2010 PARKS AND RECREATION DEPARTMENTS 1% OPTIONAL SALES TAX ALLOCATION." Motion (per consent agenda) carried. (#5074)

"A RESOLUTION CERTIFYING THAT THE GOVERNING BODY OF THE CITY OF CHEYENNE IS IN AGREEMENT WITH THE LARAMIE COUNTY BOARD OF COMMISSIONERS AS TO THE 2009 COUNTYWIDE CONSENSUS BLOCK GRANT APPLICATION TO THE STATE LOAN AND INVESTMENT BOARD." Frank Cole, developer; Mark Shubert, and Rick Fierro, Ram Trucking, Inc., spoke in opposition to the proposed SLIB funding request relative to the Construction and Demolition Recycling project. Comments included the following topics: City competition with private businesses; free enterprise; utilization of funding for other projects; community health, safety and welfare needs; contracting with private business provider(s) for services vs. the City operating the recycling program; construction debris vs. household waste issues; program efficiency; recycling market opportunities; City's compost facility, and diverting materials from the City's landfill. Upon inquiry, Mike Abel, Public Works Director, provided information on solid waste landfill diversion; construction/demolition debris; household waste and recycling program goal, and Federal permitting regulations. Dennis Pino, Solid Waste Director, provided information on current compost facility operations; reviewed the Department's waste diversion project, commenting staff has been working on this for 10 years, and discussed contaminated materials and DEQ requirements. He stated the overall goal is to extend the life of the City's landfill and advised the Department has been accepting construction and demolition debris since the inception of the landfill, explaining material recycling efforts. Further comments by Mr. Fierro and Mr. Shubert included City competition in the area of roll-off containers; Sanitation's disposal, roll-off container rental and overage fees, and support for private enterprise. Upon inquiry from Donn Edmunds concerning the total amount of block grant funds requested for all county-wide projects, Mayor Spiker advised the estimated total amount is \$20,000,000.00 with

the City's portion being approximately \$16,000,000.00. Mr. Edmunds commented on publicly vs. privately owned and operated parking lots in the downtown area, Henderson draw project and Taco John's Events Center elevator project. Mayor Spiker clarified the elevator at the Events Center was inspected when the building was initially purchased by the City, and inspectors had advised the elevator needed to be upgraded. Upon inquiry, City Engineer Ken Lewis reviewed the Deming/Waltersheid project included on the list. Mr. Cole commented on Sanitation roll-off container rates, and Hu Wang stated the City needs to conduct research and plan for the future. Mr. Segrave moved to adopt, seconded by Mr. Brown. Comments included the following topics: assignment of agenda items to Council standing committees; compilation of proposed projects; private business competition concerns; single stream recycling; transporting of certain waste materials out of town, and projects involving a new downtown parking lot and Civic Center "rigging". During comments and upon inquiry, Mr. Pino provided information on the curbside recycling pilot program, and transporting of certain wastes to Colorado. Tim Thorson, Laramie County Grants Manager, provided information on state rules governing the distribution of SLIB money and qualifying projects, and explained timing issues involving the rules, identification of qualifying projects and the City's budget time frame. Mayor Spiker advised acquisition of property for the Downtown Parking Lot-East project is contingent upon due diligence being conducted, including a property appraisal; governing body approval, and SLIB Board approval, and provided information on use of the proposed funding for the parking lot project. Mr. Laybourn moved to amend (the project list) by striking the Civic Center Power Assisted Rigging project and the Downtown Parking Lot-East project, and moving the funding proposed for these projects to the prioritized substitute list to assist with annexation of County pockets (water and sewer costs). Motion died due to a lack of a second. Following a 10 minute recess, Mayor Spiker reconvened the meeting at 10:00 p.m. Upon inquiry, Mr. Thorson provided information on the proposed Laramie County morgue project. Discussion followed regarding the Construction and Demolition Recycling project; permitting requirements through DEQ and staff research that had been conducted indicating there was no community private business that had yet been approved (permitted) through DEQ to handle the volume of construction debris/waste. Mr. Abel advised solid waste future options have been reviewed and researched and explained partnerships have been developed with private sector firms in some areas. He discussed construction debris volumes, waste diversion, proposed project facility to be built at the landfill, efficiency, goal of community-wide recycling, and the importance of meeting DEQ permitting requirements, and stated that program partners will be looked at to help the City. Further comments were made relative to the proposed downtown parking lot, and construction cost increases affecting the Norris Viaduct and Waltersheid projects. Upon inquiry, Mr. Fierro advised he is pursuing acquisition of a permit through DEQ and was currently operating under a low hazard, low volume exemption, and commented on DEQ's extensive permitting process. Discussion followed on Sanitation revenues and the general fund, and the proposed parking lot project, identified by the Downtown Development Authority as a priority in providing assistance with downtown revitalization efforts. Motion carried. Voting "yes" – all members of the governing body present with Mr. Laybourn voting "no". (#5075)

"A RESOLUTION REAPPROPRIATING THE FISCAL YEAR 2009 BUDGET OF THE CITY OF CHEYENNE ACCORDING TO THE PROVISIONS OF W.S. §16-4-112 AND §16-4-113." Reporting for Finance Committee, Mr. Segrave moved to adopt, seconded by Mr. Brown. Mr. Segrave moved to amend by substitute, seconded by Mr. Collins. Barb Dorr, City

Treasurer, advised the substitute resolution corrects fiscal year original budget figures. Motion to amend carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn voting “no”. Discussion followed on the new Public Information Officer position (Planning Office) with Ms. Dorr stating the position is being funded by 1% monies. Mayor Spiker provided information on the application/selection process utilized to fill the position. It was advised 1% money has funded other positions in the past. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn voting “no”. (#5076)

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A COUNTY FINAL PLAT FOR JACOBY FLATS SUBDIVISION, A REPLAT OF TRACT 5, CHEYENNE IRRIGATED GARDENS, LARAMIE COUNTY, WY (LOCATED AT 2014 GORDON ROAD).” Motion (per consent agenda) carried. (#5077)

[CA] “A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR PROPERTIES SITUATED IN A PORTION OF SECTION 1, 12, AND 17, T.13N., R.67W., 6TH P.M., LARAMIE COUNTY, WY (LOCATED SOUTH OF I-80 AND PREDOMINANTLY EAST OF SOUTHWEST DRIVE).” Due to postponement from Sept. 8, 2008, the item was referred to Public Services Committee.

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT OF WYOMING GRAND, 3RD FILING, A REPLAT OF VACATED MCCOMB AVENUE BETWEEN WEST LINCOLNWAY (16TH STREET) AND 17TH STREET; VACATED 16-FOOT ALLEY SITUATED WITHIN BLOCK 401 AND THAT PORTION OF LOTS 3, 4 & 5, BLOCK 401, CHEYENNE WYOMING (LOCATED EAST OF STINSON AVENUE, BETWEEN W. LINCOLNWAY AND W. 17TH STREET)” -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT OF SUNDANCE RIDGE I, A REPLAT OF TRACTS 2 AND 3, EXCEPT THE SOUTH 130-FEET OF THE WEST 100-FEET OF TRACT 2, SKYLINE TRACTS, CHEYENNE, WYOMING (LOCATED BETWEEN STOREY BOULEVARD AND SKYLINE DRIVE, ON BOTH SIDES OF SYCAMORE ROAD)” -- referred to Public Services Committee (sponsor - Mr. Collins).

PRELIMINARY PLATS/PRELIMINARY ZONE CHANGES:

[CA] Preliminary Plat and Preliminary Zone Change from LR-2 Low Density Residential Developing and A-1 Agricultural and Rural Residential Districts to PUD Planned Unit Development District for Pointe Village, a replat of Lot 1 and a portion of Lot 2, Block 5, The Pointe Subdivision and a portion of the N½ of the SW¼ of Section 17, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming (located at the northwest corner of the intersection of Powderhouse Road and Gardenia Drive) -- referred to Public Services Committee.

LEASES/CONTRACTS/LEGAL:

[CA] Professional Services Contract between the City of Cheyenne, Metropolitan Planning Organization, and Western R&D, Ltd., for the West Allison Road Corridor. Motion (per consent agenda) carried (amount not to exceed \$106,700.00). (#5306)

[CA] Professional Services Contract between the City of Cheyenne, Cheyenne Metropolitan Planning Organization and Ayres Associates for the Missile Drive Corridor. Motion (per consent agenda) carried (amount not to exceed \$114,255.00). (#5307)

[CA] Contract between the City of Cheyenne, Police Department, Victim Assistance Program, and the State of Wyoming, Division of Victim Services, for a Violence Against Women Act Law Enforcement Project (VAWA Federal Grant). Motion (per consent agenda) carried (amount not to exceed \$63,100.00). (#5308)

[CA] Grant Award Agreement between the City of Cheyenne and Wyoming Office of Homeland Security to designate the Cheyenne Police Department as Administrator for Region 7 Bomb Team for FY08 Homeland Security Grant Program -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Police Department, and Cornerstone Programs Corporation d/b/a Jeffrey C. Wardle Academy, for juvenile housing detention services -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives and Laramie County, for juvenile probation services/drug/alcohol services for youth appearing in Municipal and Circuit Courts -- referred to Finance Committee.

[CA] Cooperative Agreement between the City of Cheyenne and the Wyoming Department of Transportation, for maintenance of various traffic control devices in Laramie County -- referred to Finance Committee.

[CA] Lease Agreement between the City of Cheyenne, Parks & Recreation, Taco John's Events Center, and Cheyenne Capitals Youth Hockey Association, for the purpose of holding and presenting certain events -- referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

[CA] Amendment No. 1 to City Contract No. 4699, between Laramie County, City of Cheyenne, and American Medical Response, for an extension to the Emergency Medical Service (EMS) Agreement. Motion (per consent agenda) carried. (#4699)

[CA] Contract Modification No. 1 to Contract No. 5296 between the City of Cheyenne, Parks & Recreation Dept., and Naranjo Civil Constructors, for the Cheyenne Greenway – Safe Routes To School, (SRTS) Johnson-Goins Corridor Construction (1% Specific Purpose Sales and Use Tax. Motion (per consent agenda) carried (amount not to exceed \$34,076.50). (#5296)

[CA] Contract Modification No. 2 to Contract No. 5066 between the City of Cheyenne, Engineering Dept., and Utah Pacific Bridge and Steel Ltd., for moving and storing bridge girders (1% Specific Purpose Sales and Use Tax). Motion (per consent agenda) carried (\$23,250.00). (#5066)

[CA] Contract Modification No. 1 to Contract No. 5206 between the City of Cheyenne, Metropolitan Planning Organization, and David Ohde and Associates, for the West Lincolnway Streetscaping Plan - Phase II -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5183 between the City of Cheyenne, Engineering Department, and AVI Professional Corp., for the Masonway Roadway Improvement Project (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5186 between the City of Cheyenne, Engineering Department, and S&S Builders, LLC, for additional construction work on the Masonway Roadway Improvement Project (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Contract Modification No. 6 to Contract No. 4505 between the City of Cheyenne and Olsson Associates, for testing services and verifying compliance with federal funding conditions for the construction portion of the Norris Viaduct Project (1% Specific Purpose Sales and Use Tax) -- referred to Finance Committee.

[CA] Contract Modification No. 5 to Contract No. 3932 between the City of Cheyenne and Voyageur Asset Management Inc., for a two year extension -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5194 between the City of Cheyenne, Engineering Department, and Ayres Associates, for additional design services for the I-180 Enhancement Project - Bridge Section (2007-2010 1% Sales Tax) -- referred to Finance Committee.

CONSIDERATION OF BIDS:

[CA] Consideration of Bid #M-02-09 for a contract between the City of Cheyenne and Edward Hawley, LLC, Torrington, WY, for the Deming/Walterscheid Blvd. Reconstruction Project (1999-2002 1% Sales Tax) (SLIB Grant). Motion (per consent agenda) carried (amount not to exceed \$3,893,118.59). (#5309)

[CA] Consideration of Bid #R-6-09 from Western Plains Machinery, Casper, WY, for furnishing one new three wheel street sweeper, and to trade a 1999 Johnson 4000 street sweeper, for the Street and Alley Dept. (2007-2010 1% Sales Tax). Motion (per consent agenda) carried (amount not to exceed \$144,812.64).

[CA] Consideration of Bid #R-7-09 from Tom Scott, Cheyenne, WY, for the surplus sale of bulk wood, for the Forestry Dept. Motion (per consent agenda) carried (\$903.00).

[CA] Consideration of Bid #M-6-09 for a contract between the City of Cheyenne, Parks & Recreation Dept., and J-2 Contracting Co., Inc., Greeley, CO, for the South Cheyenne Community Park Project (2003-2006 1% Sales Tax & 1% Specific Purpose Sales and Use Tax) - referred to Finance Committee.

[CA] Consideration of Bid #R-8-09 from Frontier Refining, Cheyenne, WY, for the surplus sale of 25 each, Personal Alert Safety Systems, for the Fire & Rescue Department -- referred to Finance Committee.

ANNOUNCEMENTS/REPORTS/MOTIONS:

Announcement was made of a Public Hearing to be held October 27, 2008 at 6:00 p.m. in City Council Chambers to determine whether compliance of annexation conditions required by Wyo. Stat. § 15-1-402 exists for the property described as being situated in Sections 11 & 12, T.13N., R.67W., of the 6th P.M., Laramie County, Wyoming (located along Clear Creek south of and including I-80 right-of-way and east of and including I-25 right-of-way).

Announcement was made of a Public Meeting to be held October 27, 2008 at 6:00 p.m. in City Council Chambers to discuss declaring the intention of the 1995-1998 1% optional sales tax funding designated in Resolution 3565, as \$250,000 for unpaved streets – revolving loan guarantee account, as met and approving redesignation of the fund to be used for expanding infrastructure associated with a Habitat for Humanity Project on Messenger Court and McCann Avenue.

Announcement was made of the appointments of Joel McKee to the Building Code Board of Appeals; Harvey Deselms to the Downtown Development Association Board; Leda Pojman to the Housing and Community Development Board; Floyd Wood to the Mayor's Council for People with Disabilities; George "Bo" Short to the Planning Commission; Russell Pollard to the Police Civil Service Commission; Ted Lynch, Tanya Salih, Kelsey James, Ryan Ragaglia, David Carlson, Thomas Quinlivan, Beth Christensen, Reed Barrett, Ashley Woods, Karolyn Hopfensperger, Katherine Poffenbarger and Tyler Loyd to the Mayor's Youth Council, to be confirmed October 27, 2008.

Announcement was made of the re-appointments of Matt West to the Art in Public Places Committee; Marty Crowe to the Contractor Licensing Board; Cheryl Seaberg and Marla Lewis to the Mayor's Council for People with Disabilities; and Arlene Lowery to the Planning Commission, to be confirmed October 27, 2008.

OTHER CITY BUSINESS:

John Fafoutakis commented on Consent Agenda items referenced as routine business; encouraged the city to work with the private sector on recycling services, and expressed concerns with the proposed Taco John's Events Center elevator and Downtown Parking Lot-East projects included in the State Loan and Investment Board funding requests.

C. J. Brown expressed concerns with Martin Luther King Park relative to the transient population and unemployed individuals who frequent the park affecting other park users; discussed misuse of the park's restroom facilities, improvements/repairs needed to the tennis and basketball courts, and requested additional police patrol presence. Upon inquiry, Police Chief Bob Fecht reviewed issues involving transients and unemployed individuals utilizing the public park, and discussed police patrolling and response procedures. Mayor Spiker advised he has visited with Parks and Recreation staff concerning funding available for upgrades to the tennis and basketball courts, and Todd Feezer, Assistant Director, Parks and Recreation Dept., provided information on past resurfacing of the courts (2004) and expected life span, and explained the department is attempting to identify funds to provide the upgrades. Comments followed on law breaking vs. law abiding transients/individuals; plans for greenway path extension; police enforcement issues, and public property availability to individuals. Pastor Ernest Fitzhugh, police chaplain (jail ministry), Anita Lopez, and Pastor Rodney McDowell spoke in support of a safe park environment, and upgrading and enhancing park amenities. Mr. Feezer clarified the park's restrooms have auto-locks, and indicated the restrooms are cleaned daily.

Ms. Broyles indicated she had voted on the prevailing side on an ordinance acted upon (failed on 2nd reading) at the September 22, 2008 meeting concerning a zone change request for property located near the intersection of Storey Blvd. and Sycamore Rd., and stated her intent to make a motion to reconsider the item and to postpone action on it for two weeks. Upon request to read the title of the ordinance referenced by Ms. Broyles, City Clerk Carol Intlekofer read the following for the record: "AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM LR-2 LOW-DENSITY RESIDENTIAL-DEVELOPING DISTRICT TO NB NEIGHBORHOOD BUSINESS DISTRICT FOR THE SOUTH 130-FEET OF THE WEST 100-FEET OF TRACT 2, SKYLINE TRACTS, CHEYENNE, WYOMING (LOCATED AT THE NORTHEAST CORNER OF THE INTERSECTION OF STOREY BOULEVARD AND SYCAMORE ROAD)." Ms. Broyles moved to reconsider the ordinance, seconded by Mr. Valdez. Dr. Rinne declared a conflict of interest and vacated Council Chambers. Dickey Shanor, speaking on behalf of Ms. April Brimmer-Kunz, who was unable to attend the meeting, read a statement from Ms. Brimmer-Kunz relaying her opposition to reconsideration of the ordinance as well as the ordinance requesting re-zoning. Bob Parry, applicant requesting the zone change, spoke in favor of the re-zoning request and briefly described why the request had been submitted; discussed PlanCheyenne criteria and zoning issues, and expressed concern with

required public readings of the ordinance title. Sharon Knudson and Bruce Milmont spoke against the motion and the ordinance. Comments included property owner's knowledge of the residential zone when the property was purchased; commercial use(s) infringing on residential neighborhood, and traffic issues. Donn Edmunds commented on other areas of the community involving mixed residential and commercial uses. Discussion followed on city development requirements, PlanCheyenne document, challenges involving growth and zoning issues, and further review of issues surrounding the re-zoning request. Upon inquiry, Deputy City Attorney Erik Rasmussen advised he felt the ordinance has met public reading requirements. Motion to reconsider carried. Voting "yes" – all members of the governing body present in Council Chambers with the exception of Mr. Collins and Mr. Laybourn voting "no". Ms. Broyles moved to approve on second reading, seconded by Mr. Brown. Ms. Broyles moved to postpone for two weeks (to Oct. 27, 2008), seconded by Mr. Valdez. Comment followed on reconsideration procedures and ordinance readings. Motion to postpone carried. Voting "yes" - all members of the governing body present in Council Chambers with the exception of Mr. Laybourn voting "no". Following announcement of the vote, Dr. Rinne returned to Council Chambers.

Mr. Valdez, indicating he had voted on the prevailing side on an ordinance acted upon (approved on 3rd reading) at the September 22, 2008 meeting concerning vacation of McComb Ave, moved to reconsider the ordinance, seconded by Mr. Laybourn. Upon request, City Clerk Carol Intlekofer read the following agenda title of the ordinance proposed to be reconsidered: "AN ORDINANCE ON THIRD READING VACATING MCCOMB AVENUE BETWEEN W. LINCOLNWAY AND W. 17TH STREET AND THE 16-FOOT ALLEY WITHIN BLOCK 401, ORIGINAL CITY, CHEYENNE, WYOMING (LOCATED BETWEEN MISSILE DRIVE AND MCCOMB AVENUE AND BETWEEN W. LINCOLNWAY AND W. 17TH STREET)." Hu Wang, property owner in the near vicinity of McComb Ave., spoke in opposition to the vacation, questioned the vacation process and procedures, and extensively discussed various concerns he had involving vacation of the street. Motion to reconsider failed. Voting "no" - all members of the governing body present.

There being no further business to come before the governing body, the meeting was officially adjourned at 12:05 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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